

FEDERAL MARITIME COMMISSION

DOCKET NO. 24-01

**Visual Comfort & Co.
v.
COSCO Shipping Lines Co. Ltd.**

**COMPLAINANT’S BRIEF IN OPPOSITION TO
RESPONDENT’S MOTION TO CONSIDER RESPONDENT’S DISCOVERY
CONCERNS CONCURRENTLY WITH THOSE OF COMPLAINANT**

Complainant Visual Comfort & Co. (“VCC” or “Complainant”) submits this brief in Opposition to Respondent COSCO Shipping Lines Co. Ltd.’s (“COSCO” or “Respondent”) Motion to Consider Respondent’s Discovery Concerns Concurrently with Those of Complainant (“Motion”). COSCO’s Motion should be denied for several reasons including that it is—in effect—an improper motion for reconsideration, raises previously-resolved issues, and mischaracterizes the record.

In a classic example of “whataboutism,” Respondent’s Motion to Compel comes on the heels of the Presiding Officer’s ruling granting in part *Complainant’s* Motion to Compel. But Respondent’s Motion only rehashes complaints that were previously raised and resolved. Respondent *admitted* as much in the written meet and confer exchange regarding its Motion, during which counsel for Complainant asked counsel for Respondent to, “*please specify the*

*discovery concerns to which you refer so that we can respond to your inquiry.” See Declaration of Jennifer M. Oliver dated February 6, 2025, Ex. 1 (email dated Jan. 29, 2025). Counsel for Respondent replied: “**They are all laid out in our second motion to dismiss and Opposition Brief.**” *Id.* Precisely.¹ These issues were already briefed. The new Motion is merely a reactionary list of grievances and should be denied on several grounds.*

First, Respondent appears to ask the Presiding Officer to reconsider his Order dated January 24, 2025 and revisit long-settled discovery issues decided by the previous Presiding Officer. For example, Respondent’s qualms with Complainant’s responses to its discovery requests was raised in COSCO’s May 30, 2024 motion to compel and resolved in the Presiding Officer’s Order dated July 17, 2024.² Likewise, Respondent’s Motion to Dismiss dated October 2, 2024 was denied by Judge Crovella before Complainant even had the opportunity to respond. *See* Order Denying Respondent’s Second Motion to Dismiss dated October 8, 2024. There, the Presiding Officer found that Respondent’s purported discovery arguments actually relate to damages and liability and are therefore best reserved for final briefing. *Id.*

Second, Respondent seeks to conflate *already-decided* disputes regarding Complainant’s discovery with *currently pending undecided disputes* regarding Respondent’s discovery, as shown

¹ As demonstrated in the email exchange, Respondent’s contention that it furnished details regarding the Motion is, therefore, false. *Id.* To the extent this Motion can be categorized as a discovery motion, Respondent did not comply with the meet and confer requirement in good faith.

² Respondent claims that its motions to compel were granted in substantial part, but neglects to mention that Complainant voluntarily consented to production of substantially all of Respondent’s requests. Prior to the hearing on July 29, 2024, Complainant submitted VCC’s First Set of Supplemental Discovery Responses, which addressed nearly all of Respondent’s concerns. As the transcript of that hearing shows, Respondent’s motions were granted only insofar Complainant agreed to submit additional responses.

addressed in the Presiding Officer's Order dated January 24, 2025.³ There is simply no basis for such a request at this phase of the proceeding. *See* 46 C.F.R. Part 502 Subpart P (motions to reconsider decisions of the Presiding Officer are limited to reconsideration of final decisions). Again, as the Presiding Officer has noted, Respondent's concerns are appropriately addressed in the final order because its arguments relate only to liability and damages calculations. *See* Order dated October 8, 2024. Complainant's Second Motion to Compel, on the other hand, must be resolved now, because the outcome directly affects Complainant's ability to marshal evidence to prove its claims. Complainant rejects Respondent's suggestion that the Presiding Officer cannot understand this distinction. Motion at 3 ("we assume is due to his lack of familiarity with the past pleadings...").

And third, each of the discovery deficiencies summarily alleged in the Motion are unsupported. Respondent's allegation that Complainant "refuses to provide documents relating to its expert witness's report" (Motion at 4) is based on a gross misunderstanding of the facts and record and is addressed at length in Complainant's Reply Brief.⁴ Respondent's remaining four alleged deficiencies contain almost no detail or substantiation and are being raised first time after discovery has closed. For example, Respondent claims that Complainant "appears to have

³ Respondent even mislabels prior orders in an effort to mislead. For example, on page 3 of the Motion Respondent refers to Judge Crovella's "November 15, 2024 Order denying Complainant's late-filed Second Motion to Compel." Motion at 3. The referenced order is titled Order to Correct Filings and Order on Outstanding Motion. At no point in that order did Judge Crovella *deny* Complainant's Second Motion to Compel, rather it was deferred to be heard by the new Presiding Officer.

⁴ To summarize, Complainant's expert inadvertently relied on an incorrect dataset when drafting a portion of his report. Once the mistake was discovered during the expert deposition, the deposition was suspended, and Complainant immediately issued a corrected report. But rather than continue to examine the Complainant's expert to clarify the impact, if any, of this mistake, or to explore the remainder of his findings, Respondent refused to continue the deposition.

deliberately withheld responsive documents,” (though Respondent does not explain what these withheld documents might have been), complains that it does not know what searches were run, and makes the hyperbolic assertion that “[w]hatever searches Complainant may or may not have. . . they were 99.44% pure junk.” Motion at 3. Critically, however, Respondent has no outstanding motion to compel any documents from Complainant. Discovery closed on October 18, 2024. Complainant timely filed its Second Motion to Compel prior to the discovery end date. Respondent, by contrast, chose not to file a discovery motion, instead filed a motion to dismiss, which was immediately denied.

Respondent should not be permitted to belatedly manufacture new discovery issues simply because the Presiding Officer has granted, in part, Complainant’s discovery motion. The Respondent’s Motion is smoke and mirrors and seeks only to muddy the waters. It is *Respondent* who has shirked its discovery obligations and has now been ordered to explain these shortcomings and produce relevant documents. Allegedly, “Respondent has no problem responding to the Presiding Officer’s Order of January 24, 2025, to explain the thorough searches that were conducted and document that all responsive documents were provided to Complainant long ago.” Motion at 3. But as noted in the Order dated January 24, 2025, Respondent has repeatedly provided inconsistent and incomplete information regarding its efforts to preserve, collect, and provide relevant evidence, including by producing a corporate witness who was noticed for this very topic but was unprepared to testify on it. *See* Order Granting Complainant’s Second Motion to Compel In Part at 6.

For all of these reasons, the Presiding Officer should deny Respondent’s Motion to Consider Respondent’s Discovery Concerns Concurrently with Those of Complainant.

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Respectfully submitted,

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CERTIFICATE OF SERVICE

I certify that on the 6th of February 2025, a true and correct copy of the foregoing was served by email on all counsel of record in accordance with 46 CFR Part 502 and the Commission's Order of May 12, 2020.

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